

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2652 of 2004

Abdul Ali and another

----- Defendant-Appellant-Petitioners

=Versus=

Manikjan Bibi and others

-----Plaintiff-Respondent-Opposite Parties

Mr. M.A. Mannan Mohan, with

Mr. Saleh Mahmood Naheed, Advocates

----- For the Petitioners

Mr. Salim Reza Chowdhury, with

Mr. Ali Reza, and

Mr. Md. Zakir Hossain Sarder, Advocates

----- For the Opposite Parties

**Heard on 11.07.2017, 16.07.2017 and
Judgment on 16.08.2017**

At the instance of the present-defendant-appellant-petitioners, Abdul Ali being dead his legal heirs Faruk Sarder and others, this Rule has been issued calling upon the opposite party Nos.1 to 5 to show cause as to why the impugned judgment and decree dated 18.01.2003 passed by the learned Joint District Judge and Arth Rin Adalat, Patuakhali in Title Appeal No.162 of 2000 affirming the judgment and decree passed by the learned Assistant Judge, Galachipa, Patuakhali in Title Appeal No.70 of 1984 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present-opposite parties as the plaintiffs filed the Title Suit No.70 of 1984 in the court of learned Assistant Judge, Golachipa, Patuakhali for partition and claiming title of the suit land measuring 13.06 acres (and other land) appertaining to S.A. Khatian Nos. 492, 496 and 498 of Mouja Char Biswas and S.A. Khatian No. 275 of Mouja Uttar Char Biswas. The said suit land originally belonged to one Pancham Ali, the said Panchm Ali executed a deed of gift on 22.07.53 for measuring 3.20 acres and also gifted by the registered deed dated 30.12.54 for the land measuring 3.27 acres as they were grandson of the said Pancham Ali. Pancham Ali died on 21.04.62. He had four sons namely; Asmat Ali, Akkel Ali, Mokkel Ali and Akbar Ali and three daughters namely; Rabeya, Johora and Dulu Bibi. Dulu Bibi died before the death of their father Pancham Ali. Therefore, the plaintiffs being the legal heirs of Pancham Ali claimed entitlement and partition of the suit land mentioned in the plaint.

On the other hand, the present-petitioners as the defendant Nos.1 and 2 contested the suit by filing a written statement contending, *inter-alia*, that Pancham Ali had four sons and three daughters. One of his son Akbar Ali died before the death of his father Pancham Ali leaving behind a son namely, Rustam Ali and daughter

namely, Manikjan Bibi for the land total measuring 6.47 acres. Pancham Ali died on 21.04.61 which is before promulgation of the Muslim Family Laws Ordinance, 1961, as such, the present-plaintiff-opposite parties have no right, title and possession over the suit land under the provision of the said Ordinance, 1961 (this Law came into force on 15.07.1961).

After hearing the parties and considering the evidence the learned Assistant Judge, Galachipa, Patuakhali dismissed the suit in part for the land measuring 10.71 acres by his judgment and decree dated 31.05.2000. Being aggrieved the present plaintiff-petitioners as the appellants preferred the Title Appeal No.162 of 2002 in the court of learned District Judge and Artha Rin Adalat, Patuakhali, who dismissed the appeal by his judgment and decree dated 18.01.2003. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said impugned judgment and decree passed by the learned appellate court and the Rule was issued thereupon.

Mr. M.A. Mannan Mohan, the learned Advocate appearing with the learned Advocate Mr. Saleh Mahmood Naheed appearing for the petitioners, submits that both the courts below committed an error of law resulting in an error in the decision occasioning failure of justice

in not considering that it appears from a letter dated 30.06.88 being Memo No. 2138/1(4) judicial issued by the Additional District Magistrate, Patuakhali in which the date of death of Pancham Ali was settled on 01.04.1961 and in pursuance of the letter an order was made to correct the register.

He also submits that both the courts below committed an error in not holding that the DWs have proved that the predecessors of the plaintiffs had died before their father Pancham Ali prior to promulgation of Muslim Family Laws Ordinance, 1961, as such, the plaintiffs are not entitled to get saham as prayed for in the suit but the courts below misread the evidence on record and arrived at a wrong decision.

He also submits that the present-opposite parties as the respondents in the Title Appeal No.162 of 2002 withdrawn the Exhibit Nos.1, 2 and 3 without replacing any photo copy thereof, as such, this revisional court did not have an opportunity to look at those Exhibits which have been obtained by practicing fraud and also despite several requests from this Court a photo copy could not even produced which proves that the Exhibit-3 correction of the death certificate of Pancham Ali is absolutely false and fabricated, therefore, the Rule should be made absolute.

The Rule has been opposed by the present opposite-party Nos.1 and 3-5.

Mr. Salim Reza Chowdhury, the learned Advocate appearing with Mr. Ali Reza and Mr. Md. Zakir Hossain Sardar, the learned Advocates submits, that the trial court after examination of the documentary and oral evidences by way of deposition came to a lawful conclusion to decree the suit in part in preliminary form on 31.05.2000 and the appellate court concurrently found in favour of the present-opposite parties thereby dismissed the appeal filed by the present-petitioners and the court below committed no error of law concurrently finding and allocating saham for the land measuring 10.71 acres as the heirs of Pancahm Ali but the present-petitioners obtained the present Rule by misleading the court, therefore, this Rule should be discharged.

He also submits that the predecessor of the present-opposite parties produced as exhibit-3 which is a death certificate issued by the Collectorate Office of Patuakhali containing date of death 21.04.1962, as such, the opposite parties are entitled to succeed the property but the present-petitioners are not entitled to succeed under the provision of Muslim Family Laws Ordinance, 1961 thus, the Rule should be discharged.

He also submits that Exhibits-1, 2 and 3 were withdrawn by the plaintiff-opposite parties from the appellate court for an urgent matter but those Exhibits were given to the present-opposite parties learned Advocate Mr. Salim Reza Chowdhury, who did not return in the lower courts' record thereby those Exhibits were lost, thus, those Exhibits could not be returned for perusal of this Court In order to decide this revisional application.

He also submits that the final decree has been drawn on 18.11.2003 in the Title Suit No.70 of 1984, as such, the preliminary decree cannot be challenged by filing this revisional application.

Considering the above submissions made by the learned Advocates appearing for respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment and decree passed by the appellate court and also considering the available materials in the lower courts' records, it appears to me that the present-opposite parties as the plaintiffs filed the title suit praying for partition and title of the suit land measuring 13.06 acres out of 28.70 acres situated in S.A. Khatian Nos.275, 492, 496, 498 of Mouza Char Biswas and S.A. Khatian No.275 of Mouza Uttar Char Biswas, Police Station- Golachipa, District- Patuakhali.

The admitted positions among the parties are that one Pancham Ali was the original owner of the total land described above who had four sons namely; Asmat Ali, Akkel Ali, Mokkel Ali and Akbar Ali and three daughters namely; Rabeya, Johora and Dulu Bibi. Akbar Ali, Dulu Bibi and Johora Bibi died before their father death i.e. Akbar Ali, Johura and Dulu Bibi predeceased of Pancham Ali. It is also admitted position that Pancham Ali executed deed of gift in favour of Rustam Ali and Manikjan Bibi on 22.07.1953 and 30.12.1954 respectively regarding total land measuring 6.47 acres as Rustam Ali and Manikjan Bibi were their grandson and daughter from his own son Akbar Ali who died during his life time of Pancham Ali.

However, there are some disputes among the parties regarding the date of death of Pancham Ali and also regarding the right of inheritance upon the land left behind by Pancham Ali because all the parties are successors of Pancham Ali. The vital issue, therefore, is that when Pancham Ali died, who one successors of what measurement of land. This question arose because of promulgation of the Muslim Family Laws Ordinance, 1961 which has been incorporated in Section 4 as to succession, which reads as follows:-

4. Succession- in the event of the death of any son or daughter of the propositus before the opening of succession, the children of such son or daughter, if any,

living at the time the succession opens, shall per stripes receive a share equivalent to the share which such son or daughter, as the case may be, would have received if alive.

Under the above provision of law death of a son or daughter prior to the **propositus** before the opening of succession the successor of son or daughter would receive a share equivalent to a share which son or daughter would have received if he or she was alive.

In view of the above provision of law, the present-plaintiff-opposite parties filed the title suit claiming title and partition on the basis of their legal succession after promulgation of the said Ordinance, 1961 as their father died on 21.01.1962 Exhibit-3. On the other hand, the present-defendant-petitioners denied the claim of the plaintiffs by producing Exhibit-“Ka”, which is a death certificate obtained from the Registrar containing the date of death on 21.01.1961. The present-defendant-petitioners, therefore, claimed that the plaintiffs are not entitled to inherit the properties of Pancham Ali because in the absence of any law prior to promulgation of the Ordinance, 1961. I therefore, can clearly understand that the root of disputes among the parties are promulgation of Section 4 of the Ordinance, 1961. The plaintiff-opposite parties would get benefit by way of inheritance if they can show that Pancham Ali died after promulgation of the Ordinance, 1961, whereas, the present-defendant-

petitioners would be benefited if they can show that Pancham Ali died prior to promulgation of the said Ordinance, 1961.

In order to examine the claim and counter claim of the parties I have perused all the relevant documents available in the lower courts' record but I could not find the Exhibits-1, 2 and 3 presented by the present-plaintiff-opposite parties. On my desire I have requested the learned Advocate Mr. Salim Reza Chowdhury, who is appearing for the present-plaintiff-opposite parties about the absence of those Exhibits. He clearly conceded that those Exhibits were withdrawn by the present-plaintiff-opposite parties from the appellate court but the Exhibits have never been returned on several requests from this Court as well as the other authorities of this Court. In this regard, the learned Advocate Mr. Salim Reza Chowdhury filed an application before this Court on 16.07.2016 for exempting them from filing those Exhibits which are vital document for the decision of this Rule. This Court has also expressed a desire to file at least a photo copy of the original Exhibits but the learned Advocate made a clear reply of his inability to file the same.

In view of the above, this Court could not peruse the vital documents such as Exhibits-1, 2 and 3. Upon the said Exhibits the learned courts below had the opportunity to peruse the documents,

who concurrently found in favour of the present-opposite parties but this Court has not benefited by perusing the said Exhibits in order to examine the date of death of Pancham Ali. However, I have carefully examined the Exhibits-“Ka”, “Ga” and “Gha” produced by the present-dependent-petitioners including a death certificate issued by the Death Registrar of Thana Galachipa, District- Patuakhali containing the date of death of Pancham Ali being 21.04.1961. Therefore, regarding the date of death there is only one death certificate exhibited by the present-petitioners but there is no death certificate in the record in favour of the present-plaintiff-opposite parties which brought to a conclusion that the plaintiffs failed to prove their case in this revisional court as to the date of death of Pancham Ali. After promulgation of the Muslim Family Laws Ordinance, 1961, as such, the present-plaintiff-opposite parties are not entitled to inherit the land of Pancham Ali as claimed by filing the suit. However, the courts below could see Exhibit-3, therefore, came to a conclusion in favour of the present-plaintiff-opposite parties but this Court could not be satisfied by the relevant documents as per the claim of the plaintiff-opposite parties. I, therefore, consider that the plaintiffs claim should fail.

The learned Advocate for the plaintiff-opposite parties submits that this revisional application was filed in the year of 2004 challenging the preliminary decree but a final decree was made on 18.11.2003, therefore, a preliminary decree should not be a subject matter of the revisional court I have examined the submissions and perused the order dated 18.11.2003 passing a final decree in favour of the present-plaintiff-opposite parties. In this regard, I am of the opinion that the final decree was passed prior to final of this revisional application, therefore, I could not be argued that the final decree was not a subject matter if this Court under the revisional application because the preliminary decree in a partition suit turns into a final decree on its due course of time and after following the certain formalities for making the preliminary decree into a final decree which was drawn prior to filing this revisional application. The learned Advocate for the opposite parties submits that in support of his argument he cited a case of Aziz Ahmed and another Vs. Khorsheda Begum alias Monwara Begum and others reported in 7 MLR(AD)2002, page 25.

I have considered that these decisions are not applicable in this case because the preliminary decree in the partition suit was passed before filing this revisional application which is part of the lower

courts' record, as such, the final decree in front of this Court for examination and the learned Advocate for the plaintiff-opposite parties should have taken steps to make the final decree as part of this Rule but in fact to do the same now he could not raise a question after pendency of this Rule for more than 14 (fourteen) years.

I am now inclined to examine the judgment and decree passed by the learned courts below. The trial court came to a lawful conclusion to decree the suit in favour of the present-plaintiff-opposite parties on the basis of the following finding:

ঐ সই মোহর নকল খানি (প্রদঃ৩) পটুয়াখালী জেলা কালেক্টরেট রেকর্ড রুম হতে ইস্যু হইয়াছে ঐ সই মোহর নকল (প্রদঃ৩) পর্যালোচনায় দেখা যায় যে, পঞ্চম আলীর মৃত্যু তারিখ ২১/৪/৬২ ইং উহা যথা সমীচীন যথাযথভাবে মৃত্যু রেজিস্ট্রারে নিপিপদ হয়েছে কাজেই যথাসময়ে যথাযথভাবে মৃত্যু রেজিস্ট্রারে নিপিপদ হওয়ায় দীর্ঘ ২৬ বৎসর পর পঞ্চম আলীর মৃত্যুর তারিখ ২১/৪/৬১ ইং এ, ডি, এম এর প্রদও ইং ৩০/৬/৮৮ তারিখের এ আদেশ সামগ্রিক পারিপার্শ্বিক অবস্থা বিচার যোগাযোগী প্রতীয়মান হয় এবং বিবাদীপক্ষ উহা অএ আদালত প্রমান করিতে পারি নাই। কাজেই বাদীপক্ষের দাখিলী পঞ্চম আলীর মৃত্যু রেজিস্ট্রারের সইমোহর নকল খানি পর্যালোচনায় বাদীপক্ষের দাবীই সঠিক প্রমান হয় যে, পঞ্চম আলী ইং ২১/৪/৬২ তারিখ মারা গেছেন।

The learned appellate court also came to a concurrent finding in favour of the present-defendant-opposite parties dismissing the appeal filed by the present-defendant-petitioners on the basis of the following finding:

পর্যালোচনায় দেখা যায় যে, স্বাভাবিক নিয়ম নতুন রেজিস্ট্রার ২১/৪/৬২ তারিখ পঞ্চম আলীর নাম রেজিস্ট্রিভুক্ত হইয়াছে। উল্লিখ্য যে, মৃত্যু রেজিস্ট্রার সম্প্রদিত সিদ্ধান্ত প্রদানের যথাযথ কর্তৃপক্ষ একই বিষয় ২৬/১২/৮৫ তারিখের মতামত পরিবর্তন না করিয়া ৩০/৬/৮৮ তারিখ মৃত্যু রেজিস্ট্রার তারিখ পরিবর্তন করিয়া যে মতামত প্রদান করিয়াছে তাহা চূড়ান্ত ভাবার যুক্তিসংগত কোন কারণ নাই।

In view of the above discussions and the findings of the courts below I am of the opinion that the learned courts below concurrently found in favour of the present-plaintiff-opposite parties on the basis of Exhibit-3 which is a death certificate of Pancham Ali being 21.04.1962. No such document has been included in the lower courts' record despite several requires from this Court which seems to be intentional and malafide purpose. The reason for withdrawal of Exhibit the original certified copies Exhibit-3 and not returning the same for perusal of this Court is fatal for the present-plaintiff-opposite parties, therefore, this Court cannot consider that the plaintiffs could establish it or prove its own case which is essential element in a civil suit under the Evidence Act. I, therefore, consider that the judgment and decree passed by the learned trial court and the appellate court are not sustainable for lake of vital documents in the record. The present-defendant-petitioners document for date of death containing in Exhibit-“Ka” is the only document for the date of death of Pancham Ali, therefore, the judgment and decree of the appellate court is not a

proper judgment of affirmance. I am therefore, inclined to interfere into the impugned judgment and decree passed by the appellate court.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The ad interim order of stay granted at the time of issuance of the Rule upon the operation of the judgment and decree dated 18.01.2003 passed by the learned Joint District Judge and Artha Rin Adalat, Patuakhali in the Title Appeal No.162 of 2000 are recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts' record at once.